

unopposed motion to compel arbitration on May 2, 2025, Defendants did not request and the Court did not issue a stay of this matter pending resolution of the arbitration. The parties should address whether the lack of the issuance of a stay impacts the Court's jurisdiction to rule on this motion.

Conclusion

Defendant Hardeep Singh's motion to expunge is continued to allow for additional briefing. The Court Orders as follows:

- The hearing on this matter is continued to **March 6, 2026**.
- Both parties are to file a brief addressing the Court's jurisdiction to hear the motion to expunge the lis pendens during the pendency of the arbitration – addressing the issues outlines above – by 4:00 p.m. on **Friday, February 20**.
- The parties' briefs are limited to 10 pages.

There will be no opposition or reply papers. No additional substantive briefing should be submitted.

3. 9:00 AM CASE NUMBER: C24-02701
CASE NAME: ALYSS DORESE VS. AIDEN CIANI
***HEARING ON MOTION IN RE: TO STRIKE PORTIONS OF 1ST AMENDED CROSS COMPLAINT**
FILED BY: DORESE, ALYSS
TENTATIVE RULING:

Continued by the Court to March 13, 2026.

4. 9:00 AM CASE NUMBER: C24-03078
CASE NAME: THALBIR OLI VS. GOVIND SHAHI
HEARING ON DEMURRER TO: RE 1ST AMENDED CROSS-COMPLAINT
FILED BY: SHAHI, GOVIND K.
TENTATIVE RULING:

This matter is dropped from calendar per the request of the moving party.

5. 9:00 AM CASE NUMBER: C25-00197
CASE NAME: MICHAEL REDONDO VS. CONCORD POST ACUTE CARE
HEARING ON DEMURRER TO: RE 2ND AMENDED COMPLAINT
FILED BY: SYCAMORE HEALTHCARE ASSOCIATES DBA LEGACY POST ACUTE CARE
TENTATIVE RULING:

The case is stayed pending arbitration. Please see Line 6.

6. 9:00 AM CASE NUMBER: C25-00197
CASE NAME: MICHAEL REDONDO VS. CONCORD POST ACUTE CARE
*MOTION/PETITION TO COMPEL ARBITRATION
FILED BY: SYCAMORE HEALTHCARE ASSOCIATES DBA LEGACY POST ACUTE CARE
TENTATIVE RULING:

The motion to compel arbitration is unopposed and is **granted**. Parties shall submit the dispute to arbitration. This case is stayed pending the outcome. (See Code Civ. Proc., § 1281.2 (c)-(d).) All future dates are taken off calendar and a case management conference is scheduled for August 6, 2026 at 8:30 a.m. at which time parties shall report back concerning the status of arbitration.

7. 9:00 AM CASE NUMBER: C25-02220
CASE NAME: MORTGAGE ELECTRONIC REGISTRATION SYSTEMS, INC. VS. NANCY YEE
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: YEE, NANCY NGUYEN
TENTATIVE RULING:

[Demurrer]

Introduction

Before the Court is Defendants Robert and Nancy Yee's ("Defendants" or "Yee Defendants") Demurrer. The Demurrer relates to Plaintiff MERS and Shellpoint's Complaint for six contract and fraud related causes of action.

For the following reasons, **Defendants' Demurrer is overruled in its entirety.**

Meet and Confer Requirement

Defendants Robert and Nancy Yee failed to file a declaration in support of their meet and confer efforts in violation of their statutory duties. (CCP §§ 430.41 and 435.5.) However in their reply, Defendants state that they did engage in a good faith meet and confer prior to filing the Demurrer. Since Plaintiff filed a Reply stating that the Defendants did in good faith meet and confer with Plaintiffs, the Court will proceed to the merits.

Statement of Facts

Loan History

On or about June 23, 2022, Nancy Nguyen Yee and Robert Frank Yee, executed a deed of trust securing a promissory note against real property commonly known as 2246 Lake Crest Court Martinez, CA 94553 ("Property") for \$640,000 ("Loan") in favor of MERS, as beneficiary, as nominee for Champions Funding, LLC, its successors and assigns. The deed of trust was recorded in the Official Records of Contra Costa County on June 24, 2022, as Document No. 2022-010385 ("2022 Deed of Trust") (Complaint ¶15.) MERS is the current beneficiary of the 2022 Deed of Trust. (Complaint ¶16.) On or about May 1, 2024, Shellpoint took over servicing of the Loan secured by the 2022 Deed of Trust after the acquisition of Specialized Loan Servicing, LLC. (Complaint ¶17.) Shellpoint is the current servicer of the Loan secured by the 2022 Deed of Trust. (Complaint ¶18.)

Litigation and Unsuccessful Payoff

On or about February 23, 2024, Robert Frank Yee and Nancy Nguyen Yee filed a lawsuit in the Contra